AUSTRALIAN ASSOCIATION
OF VOICE ACTORS

Joint Standing Committee on Electoral Matters Inquiry Into the 2025 Federal Election Submission

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The Australian Association of Voice Actors (AAVA) welcomes the opportunity to make this submission to the Joint Standing Committee on Electoral Matters' (JSCEM) inquiry into the 2025 federal election.

AAVA is the peak body representing Voice Actors and Voiceover Artists in Australia and we recognise, through recent challenges faced by our industry, the risks generative AI technology poses to Australia's position as a global leader in well managed and transparent elections are increasingly concerning.

The Problem of AI-Powered Misinformation

Personalised advertisements increasingly powered by artificial intelligence (often known as 'dark advertising'), Robocalls using AI voice-clones of political opponents (as was seen in the last US election), and TV/Online advertising using AI-generated deepfakes are eroding trust in genuine political messaging. Coupled with Australia's failure to enact truth-in-advertising legislation and social media companies' withdrawal from meaningful fact-checking, voters are vulnerable to AI-powered scalable misinformation campaigns with infinite versions.

In other jurisdictions AI-generated content and deep-fakes have been used to undermine democracy. Deep-fake porn videos of the Malaysian Economic Affairs Minister Rafizi Ramli and Communications Minister Fahmi Fadzil caused reputational damage, the Military in Gabon launched an ultimately unsuccessful coup after the release of a deep-fake video of President Ali Bongo suggesting he was no longer healthy enough to hold office, and in Belgium, and a political group released a deepfake of the Belgian Prime Minister giving a speech that linked the COVID-19 outbreak to climate change.

Australia's legislative response to deepfakes and AI voice clones dramatically trails the development of the technology itself. Whilst the government cannot stop those with bad intentions (often based off shore) from creating misinformation it can regulate official election messaging. Without proactive measures to counter the proliferation of deepfakes, Australia's upcoming federal election may suffer the same fate as other democracies.

The Australian Electoral Commission (AEC) does not have power to regulate or ban political deepfakes, but instead, places responsibility on voters to 'stop and consider' the source of political information. This approach is problematic given the ability for most people to detect AI-generated deep-fakes is limited.

In 2020 a study by the *Journal of Computer-Mediated Communication published in 2022*[1] played a deepfake video of then British Prime Minister Boris Johnson

[1] *Journal of Computer-Mediated Communication*, Volume 27, Issue 4, July 2022
https://academic.oup.com/jcmc/article/27/4/zmac008/6650406

speaking directly to a camera and falsely endorsing his former opponent, ex-Labour Party leader Jeremy Corbyn, for prime minister. Out of the 199 participants, only 82 (41.2%) stated or suspected that the video was fake. The reason given by most of those who suspected the video as fake was individual differences in analytic thinking and political interest, not an ability to spot deep-fakes.

Mandatory AI-Transparency as a Solution

In 2024, the Communications Legislation Amendment (Combatting Misinformation and Disinformation) Bill was tabled but failed to pass due to push-back relating to possible impacts on freedom of expression. If passed, the Act would have empowered The Australian Communications and Media Authority (ACMA) to hold digital platforms accountable for disseminating misinformation that causes serious harm to Australians.

Whilst this bill was criticised by the opposition[2] for encouraging platforms to overly censor content to avoid penalties, there is an ever-growing need to address misinformation online that has not yet been met.

Regarding broadcast and print media in Australia, a simple solution would be **mandatory labelling and disclosure of all AI-generated content** (voices, images, video, and text). AI labelling would be a strong, effective and simple to impliment first step towards maintaining the trust of the voting public when it comes to political advertising.

In the Australian Electoral Commission's own submission to this JSCEM inquiry into the 2025 federal election, the following recommendation was made:

"requiring communication that contains a deepfake (e.g., AI generated images of another candidate) to declare the presence of a deepfake in the authorisation to help voters better understand and navigate the communication"

AAVA fully supports and wants to see declaration of the use of deep-fakes, voice-clones and AI-generated content, however disclosing this fact *after* an ad has played (in the authorisation end-tag) would not be as effective as disclosing this information to the viewer/listener *before* the commercial plays, and *throughout when possible* (i.e. an on-screen subtitle). This would give the consumer the opportunity to scrutinise the content in real time and have an informed reaction to what is being presented to them.

[2] Australian Financial Review, Opinion by David Coleman, Oct 8 2024
https://www.afr.com/politics/federal/the-government-s-misinformation-bill-is-a-betrayal-of-democracy-20241001-p5keuo

Truth In Political Advertising Laws

According to the Australia Institute's own polling (2023)[3] a vast majority of Australians (87%) felt that *Truth in political advertising laws* should have been in place for the 2025 election.

Whilst pharmaceutical companies, food companies, lawyers and any other entity advertising a product or service cannot espouse mistruths without recourse, politicians can lie about their policies and/or those of their opponents and present false statistics.

Under the South Australian Electoral Act - ss 113(1),(2),(4)[4] a person who authorises, causes or permits the publication of an electoral advertisement by any means (including radio or television) is guilty of an offence if the advertisement contains a statement purporting to be a statement of fact that is inaccurate and misleading to a material extent.

AAVA would like to see these requirements repeated on a federal level.

Conclusion

If the Australian public know that the information in political advertising is being scrutinised for truth and accuracy, and that all use of deep-fakes, voice-clones, and AI-generated media is being disclosed in real time, faith in Australia's democracy will be in a much stronger shape as AI technology continues to contaminate our information spectrum.

[3] https://australiainstitute.org.au/post/truth-in-political-advertising-laws/
[4] https://www.ecsa.sa.gov.au/parties-and-candidates/electoral-advertising-state-elections